

Council Meeting

June 21 2023

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Contemporaneous meeting notes for use with other resources in preparation of draft minutes  
MEMBERS – PERSONS appearing – BRIEF DESCRIPTION – DECISIONS. RSA 91-A:2.

The Claremont City Council held a meeting on Wednesday, June 21, 2023, in the Council Chambers of City Hall.

The meeting was called to order by Mayor Girard at 6:30 p.m.

Members of the Council present:

Ward I Councilor Andrew O’Hearne – recused

Ward II Councilor Contois

Ward III Councilor Jonathan Stone

Assistant Mayor Debora Matteau

At-Large Councilor Nicholas Koloski

At-Large Councilor William Limoges – via phone, in a hotel room, alone.

At-Large Councilor Spencer Batchelder

At-Large Councilor Matthew Mooshian

Mayor Dale Girard

Also present:

Yoshi Manale, City Manager

**NEW BUSINESS**

Councilor Hearing

Attorney Tanguay gave a brief overview of the hearing proceedings, and stated the Council is here to determine if there are grounds to remove a sitting official. Attorney Tanguay asked the Council to not accept public comment for this hearing.

Mayor Girard will be serving as the hearing officer and conducting direct testimony of witnesses.

Councilor O’Hearne asked how this is transparent if the Council packet did not come out until Tuesday, only giving defense a day to see items, and the public wasn’t notified of the packet.

Councilor Stone stated he thought this was unacceptable.

Mayor Girard reviewed previous discussions and noted on May 27<sup>th</sup> Mayor Girard sent an email to the City manager and Ms. Bizzarro requesting the attendance of the City Manager, Chief Wilmot, Director Gleeson, Police Commissioner Dube, Sargent Blewitt, as well as Councilor O’Hearne. At this time written statements from DPW workers were requested, a statement from Sargent Blewitt, and from City Manager Manale. After speaking with Attorney Tanguay, the

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Mayor had also requested the attendance of the three DPW workers involved to be present for the hearing. On June 7<sup>th</sup> an email was forwarded to the City Manager requesting their presence.

Mayor Girard made note that the DPW workers were not present at this hearing.

Councilor Stone stated there were no individual statements from the DPW workers, but a statement that is signed by several individuals.

Assistant Mayor Matteau stated at minimum the three DPW workers should have written their own statements.

Councilor Limoges agreed and doesn't think the hearing can move forward without individual statements and without the DPW workers being present.

Councilor Koloski stated there is still other information in front of council and believes they can start the hearing.

Councilor Batchelder stated he was disappointed to see a joint statement, but doesn't want the City employees to be here if they are uncomfortable.

At 6:42 p.m. Attorney Tanguay asked to meet with Council in private in the conference room of the City Hall Chambers.

At 6:59 p.m. Council came out of their private session with the Attorney and resumed the Council Hearing.

Mayor Girard stated the Council will continue with the process, but will be going to go out of order, and would like to start with Police Commissioner Dube.

Police Commissioner Dube stated he got a call on May 11<sup>th</sup> for a concern down on Main Street with DPW painting crosswalks, and the person that called was concerned for no police officers, and informed them he would make a call to the Chief.

Assistant Mayor Matteau asked who called Commissioner Dube, Commissioner responded it was Councilor O'Hearne.

Councilor Batchelder asked if it was typical to take calls from Councilors and then calling the Police Chief to follow up.

Councilor Koloski asked Commissioner Dube if decisions should be made through the board of commissioners and not through a single commissioner themselves.

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Commissioner Dube stated the reason he called the police was because of a safety concern, and noted even as a citizen he would call the Chief.

Police Chief Wilmot stated he was not on duty that night, and his first call was from the City Manager, Chief Wilmot stated he missed the call, but called back about ten minutes later, and the City Manager had resolved the situation. The City Manager relayed receiving a phone call from Councilor O’Hearne about a safety concern. Chief Wilmot stated his next call was from Commissioner Dube indicating Councilor O’Hearne had reached out with a traffic concern. Chief Wilmot also received a call from the department of Public Works, Chief Wilmot contacted the Police Department and spoke to Sargent Blewitt asking what was happening. Sargent Blewitt shared with the Chief that the City Manager called with a concern relative to line striping on Main Street, Sargent Blewitt had gone to the site and determined there was no hazard and did not need Police detail. After, Chief received another call to learn that Councilor O’Hearne was still at the site and there was a concern for some impairment, The Chief then called Sargent Blewitt to go back, it was reported that this time Manager Manale was there and Councilor O’Hearne was walking to his residence.

Mayor Girard asked Manager Manale to make his statement.

Manager Manale asked to read the email that he sent to Council with one addition, Council agreed.

Manager Manale read the email that was sent the morning of May 12<sup>th</sup> on events that occurred May 11<sup>th</sup>. In addition, Manager Manale stated an apology was given to the DPW workers, but not to the manager and it was never stated these issues wouldn’t occur again.

Councilor Stone asked which employee said “big-stick” relative to the email he read. Manger Manale responded this was Mr. Hussey.

Councilor Stone asked if any of the DPW employees at the time ask O’Hearne to leave the area, Manager Manale responded that he did not recall.

Mayor Girard called Sargent Blewitt up to the podium.

Sargent Blewitt stated he got a call from dispatch for a possible concern for traffic on Union and Main Street. At this time, he was on a service call for Sugar River Mills, since Sargent Blewitt was so close, he walked up the driveway on Main Street to where he could see through the intersection and stated he saw no issues with traffic. After his original service call was over Sargent Blewitt drove through the Main Street and Union intersection and still saw no issue. Sargent Blewitt stated he received a phone call from Chief Wilmot asking to go back to the site for a traffic issue, and Councilor O’Hearne possibly interfering with the DPW. Sargent Blewitt

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stated when he arrived DPW had moved down to Main and Elm Street, and Mr. O’Hearne was walking away across the bridge on Main Street, the City Manager was already there.

Mayor Girard explained the Council will not be listening to the statement provided by Director Gleeson, and asked for Mr. Gleeson to let the Council know what events happened that night.

Director Gleeson stated around 8:30 p.m. Mr. Hussey called and said Councilor O’Hearne was onsite asking questions and sharing concern for lights and not having a police presence. Director Gleeson stated while he was on his way to the site, he called Manager Manale to fill him in on what is happening, Manale had told Director Gleeson that he was already aware and was also on his way. Director Gleeson called Mr. Hussey back to inform them that himself and the City Manager was on their way to the site. Director Gleeson then stated Mr. Hussey said Councilor O’Hearne had Councilor Stone on speaker phone and was saying he wasn’t alone. Director Gleeson said this was distracting the DPW workers from what they were supposed to be doing. By the time Director Gleeson arrived, Manager Manale was already on site and sent Councilor O’Hearne home. Director Gleeson then stayed with the crew until they finished.

Council decided to play the dispatch recording.

Mayor Girard asked if Councilor O’Hearne had any questions.

Councilor O’Hearne asked if there were any other documents that were generated that were not supplied to the Council or in the packet.

Council replied, no.

Councilor O’Hearne then asked about a letter that was sent to him by the City Manager’s Office asking for a resignation signed by the Mayor.

Mayor Girard noted the letter was written by the attorney.

Councilor Stone noted that he did not see a letter, and it should have been given to Council.

Assistant Mayor Matteau read the letter aloud.

Councilor Koloski noted the Council was aware that a letter would be sent to Councilor O’Hearne to be on notice and doesn’t see this as a Council demanding resignation.

**A motion was made by Assistant Mayor Matteau and seconded by Spencer Batchelder to close this portion of hearing evidence.**

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**Roll Call:**

**Mooshian-yes**

**Contois – yes**

**Limoges – yes**

**Koloski – no**

**Matteau – yes**

**Stone – yes**

**Batchelder - yes**

**Girard – yes**

**Motion carried 7-1**

Councilor Contois suggested to dismiss any attempt to remove Councilor O’Hearne.

Councilor Koloski stated not being in favor of a dismissal.

**A motion was made by Councilor Contois and seconded by Councilor Stone for the dismissal of removal.**

**Roll Call:**

**Mooshian - yes**

**Contois – yes**

**Limoges – yes**

**Koloski – no**

**Matteau – yes**

**Stone – yes**

**Batchelder - no**

**Girard – yes**

**Motion carried 6-2**

**At 7:51 p.m., a motion was made by Assistant Mayor Matteau and seconded by Councilor Limoges to adjourn.**

**Voice Vote:**

**Mooshian - yes**

**Contois – yes**

**Limoges – yes**

**Koloski – yes**

**Matteau – yes**

**Stone – yes**

**Batchelder - no**

**Girard – yes**

**Motion carried 8-0**

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Respectfully Submitted,

Julia A. Bizzarro  
Clerk to the Council

DRAFT